

74
Final Certificate No.

2973

Homestead Application No.

13138

Peter Long

LAND OFFICE

AT

Monteville, Ala.

July 28th

, 1884

Sect.

12

Town.

9.8

Range

42

Approved

April 11

, 1884,

Mary Murphy

Clerk,

Division

Ex

Patented

Nov. 1

, 1884,

Recorded, Vol.

6

page

333

26.120

51

HOMESTEAD.

Land Office at Monteville, Ala.July 28, 1884

FINAL CERTIFICATE,

No. 2973

APPLICATION,

No. 13138

It is hereby certified That, pursuant to the provisions of Section No. 2291, Revised Statutes of the United States, Peter Long has made payment in full for NE 1/4 of SE 1/4

of Section No. 12, in Township No. 9 8, of Range No. 4 E, of the Monteville, Ala. Principal Meridian, containing 42 $\frac{03}{100}$ acres.

Now, therefore, be it known, That on presentation of this Certificate to the COMMISSIONER OF THE GENERAL LAND OFFICE, the said Peter Long shall be entitled to a Patent for the Tract of Land above described.

Wm Croft

Register.

ELECTRO'S.

[9508-15,000.]

FINAL RECEIVER'S RECEIPT, No.

29723

APPLICATION, No.

13138

Lud HOMESTEAD.

Receiver's Office, Huntsville, Ala.

Jan 28, 1884

Marshall Co Ala

Received of

Peter Long

the sum

of dollars cents,

being the balance of payment required by law for the entry of

NE 1/4 of SE 1/4

of Section 12 in Township 9 of Range 4 E
containing 42 2/3 acres, under Section 2291 of the
Revised Statutes of the United States.

\$

Wm J. Fancie

Receiver.

Receiver's Duplicate Receipt No. 13,138Application No. 13,138*Add'l*HOMESTEAD. *act March 3, 1879*Receiver's Office, *Centerville Ala**October 19, 1882*RECEIVED of *Peter Long Marshall Co* the sumof *0* dollars *0* cents;

being the amount of fee and compensation of Register and Receiver for the

entry of *N^W 1/4 of SE 1/4* of Section *12* inTownship *9 S* of Range *4 E*, under*act March 3, 1879*
Section 2290, Revised Statutes of the United States. *4203 acres**Wm H. Fancie*

Receiver.

\$ 0*Orig. farm: Final Cert No 1590 made Nov 11/80*

NOTE.—It is required of the homestead settler that he shall reside upon and cultivate the land embraced in his homestead entry for a period of five years from the time of filing the affidavit, being also the date of entry. An abandonment of the land for more than six months works a forfeiture of the claim. Further, within two years from the expiration of the said five years he must file proof of his actual settlement and cultivation, failing to do which, his entry will be canceled. If the settler does not wish to remain five years on his tract, he can, at any time after six months, pay for it with cash or land warrants, upon making proof of settlement and cultivation from date of filing affidavit to the time of payment.

Additional Homestead,--Act of March 3, 1879.

AFFIDAVIT.

LAND OFFICE AT HUNTSVILLE, ALA.,

188

I, Peter Long, of Murham Ala, having
filed my Application, No. 13138, for an entry under the Act of March 3, 1879, do solemnly swear that
I am the head of a family and twenty-one years of age, that I am a citizen of the United States,
that I will support the Constitution of the United States and all laws made in pursuance thereof--
that said Application No. 13138 is made for my exclusive benefit; and that said entry is made for
the purpose of actual settlement and cultivation, and not, directly or indirectly, for the use or benefit of
any other person or persons whomsoever, and that I have not heretofore had the benefit of said Act.

That I have not served 90 days in the Army of the U S
Peter Long

Sworn to and subscribed, this 15th day of Aug, 1882

John W. Perkins, Register.

James A. Pickard, Pr., Independent Office.

Clark Hunt Court

NON-MINERAL AFFIDAVIT.

COUNTY OF Muskegon, }
 State OF Michigan } ss:

Peter Long being duly sworn according to law, deposes
 and says that he is the identical Peter Long who is an applicant
 for Government title to the N.E. 1/4 of S.E. 1/4 of Sec 12
Twp 89 of R 4 E

that he is well acquainted with the character of said described land, and with each and every legal sub-
 division thereof, having frequently passed over the same; that his knowledge of said land is such as to
 enable him to testify understandingly with regard thereto; that there is not, to his knowledge, within the
 limits thereof, any vein or lode of quartz or other rock in place, bearing gold, silver, cinnabar, lead, tin,
 or copper, or any deposit of coal; that there is not within the limits of said land, to his knowledge, any
 placer, cement, gravel, or other valuable mineral deposit; that no portion of said land is claimed for
 mining purposes under the local customs or rules of miners or otherwise; that no portion of said land is
 worked for mineral during any part of the year by any person or persons; that said land is essentially
 non-mineral land, and that his application therefor is not made for the purpose of fraudulently obtaining
 title to mineral land, but with the object of securing said land for agricultural purposes.

Peter Long
 subscribed

E. N. Long

Subscribed and sworn to before me this 15th day of Aug, A. D. 1882,

and I hereby certify that the foregoing affidavit was read to the said Peter Long
 previous to his name being subscribed thereto; and that deponent is a respectable person to whose affidavit
 full faith and credit should be given.

John W. Perkins,
 Clerk Circuit Court

Additional HOMESTEAD.

APPLICATION
No. 13138

Land Office at _____

_____, 188 .

I, Peter Long
aka

of Muchall co
Set March 3 1879

, do hereby apply to enter, under Section 2289,

Revised Statutes of the United States, the N.E. 1/4 of S.E. 1/4

of Section 12, in Township 9 of

Range 4 E, containing 42.03 acres.

as additional to my entry no
4261 in E. 1/4 Sec 12
Allert - 4261 in E. 1/4 Sec 12
Original no 1590
filed Peter & Long
Jan 11, 1880

his
Mark

Land Office at Kennerly aka

Oct 19, 188 2

I, James, REGISTER OF THE LAND OFFICE,

do hereby certify that the above application is for Surveyed Lands of the class which the applicant is legally entitled to enter under Section 2289, Revised Statutes of the United States, and that there is no prior valid adverse right to the same.

James

Register.

RECEIVER'S RECEIPT, No. 13138APPLICATION, No. 13138*Adm*

HOMESTEAD.

Receiver's Office, *Montville Ala**October 19*, 188*2*.Received of *Peter Long Marshall* the sum

of _____ dollars _____ cents;

being the amount of fee and compensation of Register and Receiver for the entry of _____

*N 1/4 SE 1/4*_____ of Section *12* inTownship *9* of Range *48*, under*act March 3 1879*
Section No. 2290, Revised Statutes of the United States. *4 1/2* *03* acres*Wm. F. Gaudin*

Receiver.

\$ _____

Original: Proof filed Nov 11/80 # 1590

NOTE.—It is required of the homestead settler that he shall reside upon and cultivate the land embraced in his homestead entry for a period of five years from the time of filing the affidavit, being also the date of entry. An abandonment of the land for more than six months works a forfeiture of the claim. Further, within two years from the expiration of the said five years he must file proof of his actual settlement and cultivation, failing to do which, his entry will be canceled. If the settler does not wish to remain five years on his tract, he can, at any time after six months, pay for it with cash or land warrants, upon making proof of settlement and cultivation from date of filing affidavit to the time of payment.

ELECTRO'S. [9343—50 M.]

See note in red ink, which Registers and Receivers will read and EXPLAIN THOROUGHLY to persons making application for lands where the affidavit is made before either of them.

Timber land embraced in a homestead, or other entry not consummated, may be cleared in order to cultivate the land and improve the premises, but for no other purpose. If, after clearing the land for cultivation, there remains more timber than is required for improvement, there is no objection to the settler disposing of the same. But the question whether the land is being cleared of its timber for legitimate purposes is a question of fact which is liable to be raised at any time. If the timber is cut and removed for any other purpose it will subject the entry to cancellation, and the person who cut it will be liable to civil suit for recovery of the value of said timber, and also to criminal prosecution under Section 2461 of the Revised Statutes.

No. 1.-HOMESTEAD.

Land Office at _____

_____, 188

I, Peter Long, of *Attitash, Maine Co* also
additional who made Homestead Application No. *13138* for the
N.E. 1/4 of D. E. 1/4 sec 12 T. 9, R. 4 E.
do hereby give notice of my intention to make final proof to establish my
claim to the land above described, and that I expect to prove my residence
and cultivation before *Notary J. B. Marshall Co* also
at *Huntsville* on *January 25*, 1884,
by two of the following witnesses:

J. F. Miller, of *Attitash, Maine Co* also
John Kuykendall, of " " " "
James Garrod, of " " " "
George Mayo, of " " " "
attest.

Peter Long
(Signature of claimant.)

Land Office at *Huntsville* also*Dec 7th*, 1883.

Notice of the above application will be published in the _____
printed at _____, which I hereby designate as the
newspaper published nearest the land described in said application.

4

STEREO'S.

James Newell
Register.

Notice to Claimant.—Give time and place of proving up and name and title of the officer before whom proof is to be made; also
give names and post-office address of four neighbors, two of whom must appear as your witnesses.

The State of Alabama,

MARSHALL COUNTY.

PERSONALLY came before me T. A. STREET, Probate Judge of said county, S. PALMER, who being sworn, says, the foregoing notice appeared for six consecutive weeks in the GUNTERSVILLE DEMOCRAT, a weekly newspaper published in said county.

Land Office at Huntsville Ala.,
Dec. 7 1883.
Notice is hereby given that the following named settler has filed notice of his intention to make final proof in support of his claim, and that said proof will be made before Probate Judge of Marshall county Ala., at Guntersville on 25th Jan. 1884.—His additional entry No 13138 N E qr S E qr section 12 township 9 range 4 E. Peter Long. He names the following witnesses to prove his continuous residence upon, and cultivation of, said land, viz:—J. F. Miller, John Kuykendall, James Garrard, Geo. Hays, Albertville Ala., JNO. M. CROSS, Register.
dec20-6w.

S. Palmer,

Publisher.

Subscribed and sworn to before me, this 25th day of January 1884

T. A. Street

Probate Judge.

CERTIFICATE AS TO POSTING OF NOTICE.

Land Office at Huntsville, Ala.

June 28, 1884.

I, J. J. J. J., Register, do hereby
certify that a notice, a printed copy of which is hereto
attached, was by me posted in a conspicuous place in my
office for a period of thirty days, I having first posted said
notice on the 7th day of Deci, 1883.

J. J. J. J.
Register.

Final Affidavit Required of Homestead Claimant.

ACT OF MAY 20, 1862.

The State of Alabama,
COUNTY OF MARSHALL.

I, *Peter Long*
actual settler
having made Homestead entry on
A

the *N E 1/4 of S. E 1/4* Section,
12 in Township *9* of Range *4* East, subject to

entry at *Huntsville*, Alabama, under the first Section of the

Homestead Act of *Cypress u. s. a*; do now apply to perfect

my claim thereto by virtue of Section 2291, Revised Statute of the United States, and for that

purpose, do solemnly swear that *I am* a citizen of the United States; that I

have made actual settlement upon and have cultivated said land, having *my residence* resided thereon,

since *first to the 25th* day of *October* 18*70*, to the present time; that no part

of said land has been alienated, but that I am the sole bona fide owner as an actual settler;

that I have not heretofore had the benefit of the Homestead Act or perfected or abandoned an

entry made under its provisions; that I will bear true allegiance to the Government of the

United States; and, that I am unable to visit the Land Office at Huntsville, Alabama, by

reason of distance and expense,
attest John E. Hillman *Peter Long*
I, THOS. A. STREET, Probate and Ex-officio County Court Judge of Marshall County,

do hereby certify that the above affidavit was taken and subscribed before me, this *25th*

day of *January* A. D., 18*84*.

T. A. Street
Probate and Ex-officio County Court Judge of the County of Marshall.

HOMESTEAD PROOF.---TESTIMONY OF WITNESS.

Jesse F. Miller
of *Peter Long*
 R. 4. E.

additional
being called as a witness in support of the Homestead entry
for *N. E 1/4 of 1, E 1/4 Sec. 12. T. 9.*
 R. 4. E., testifies as follows:

Ques. 1.—What is your occupation and where is your residence?

Ans. *Farmer & P.O. address Lot Mathews etc*

Ques. 2.—Have you been well acquainted with *Peter Long*, the claimant, in
additional
this case ever since he made his homestead entry No. *13138?*

Ans. *Yes*

Ques. 3.—Was claimant qualified to make said entry? (State whether the settler was a citizen of the United States, over the age of twenty-one years, or the head of a family, and whether he ever made a former homestead entry.)

Ans. *Settler was a citizen of U. S. Head of a family and never made any former homestead entry except his only entry, proof filed for same Nov 11th 1880 & No 15-90*

Ques. 4.—When did claimant settle upon the homestead and at what date did he establish actual residence thereon? (Describe the dwelling and other improvements, giving total value thereof.)

Ans. *Claimant resided on orig homestead from proof No. 15-90, & cleared about 20 acres and all improvements worth about 100\$.*

Ques. 5.—Have claimant and family resided continuously on the homestead since first establishing residence thereon? (If settler is unmarried, state the fact.)

Ans. *Yes, on orig entry.*

Ques. 6.—For what period or periods has the settler been absent from the land since making settlement, and for what purpose; and if temporarily absent, did claimant's family reside upon and cultivate the land during such absence?

Ans. *Have not been absent from orig homestead*

Ques. 7.—How much of the *additional* homestead has the settler cultivated and for how many seasons did he raise crops thereon?

Ans. *About 20 & cultivated portions of same for ten years last part, additional*

Ques. 8.—Are there any indications of coal, salines, or minerals of any kinds on the homestead? (If so, describe what they are, and state whether the land is more valuable for agricultural than for mineral purposes.)

Ans. *No*

Ques. 9.—Has the claimant mortgaged, sold, or contracted to sell, any portion of said *additional* homestead?

Ans. *Not to my knowledge*

Ques. 10.—Are you interested in this claim; and do you think the settler has acted in entire good faith in perfecting this entry?

Ans. *No. Yes*

Jesse F. Miller

I hereby certify that the witness is a person of respectability; that the foregoing testimony was read to him before being subscribed, and was sworn to before me this *25th* day of *June,* 188 *4.*

Geo M. Hays
of Peter Long
T. 9, R 4th E.

being called as a witness in support of the Homestead entry
for N.E 1/4 of P.E 1/4 Sec 12
additional
testifies as follows:

Ques. 1.—What is your occupation and where is your residence?

Ans. Farmer & P.O address Albertville Ala

Ques. 2.—Have you been well acquainted with Peter Long, the claimant, in this case ever since he made his homestead entry No. 13138?
additional

Ans. Yes.

Ques. 3.—Was claimant qualified to make said entry? (State whether the settler was a citizen of the United States, over the age of twenty-one years, or the head of a family, and whether he ever made a former homestead entry.)

Ans. Settler was a citizen of the U. S. over the age of 21 and head of a family and made orig homestead entry & filed final proof of same in 1890 and has received Patent for same.

Ques 4.—When did claimant settle upon the homestead and at what date did he establish actual residence thereon? (Describe the dwelling and other improvements, giving total value thereof.)

Ans. Claimant lives on orig homestead and has cleared about 20 acres of additional entry and improvements worth 100\$.

Ques 5.—Have claimant and family resided continuously on the homestead since first establishing residence thereon? (If settler is unmarried, state the fact.)

Ans. Yes on original farm \$1590.

Ques. 6.—For what period or periods has the settler been absent from the land since making settlement, and for what purpose; and if temporarily absent, did claimant's family reside upon and cultivate the land during such absence?

Ans. Was not here about from orig farm \$1590 additional

Ques. 7.—How much of the homestead has the settler cultivated and for how many seasons did he raise crops thereon?

Ans. About 20 acres & cultivated portion of same for years 1878 to 1883 inclusive

Ques. 8.—Are there any indications of coal, salines, or minerals of any kinds on the homestead? (If so, describe what they are, and state whether the land is more valuable for agricultural than for mineral purposes.)

Ans. No

Ques. 9.—Has the claimant mortgaged, sold, or contracted to sell, any portion of said homestead?

Ans. Not to my knowledge.

Ques. 10.—Are you interested in this claim; and do you think the settler has acted in entire good faith in perfecting this entry?

Ans. Yes.

Attest: John E. Keefe Geo M. Hays

I hereby certify that the witness is a person of respectability; that the foregoing testimony was read to him before being subscribed, and was sworn to before me this 25th day of June, 1884.

(See note on fourth page)

J. A. Stuart, Notary

HOMESTEAD PROOF.--TESTIMONY OF CLAIMANT.

Peter Long being called as a witness in his own behalf in support of home-
stead entry No. *13138* for *N. E 1/4 of S. E 1/4 sec 12 T. 9. R. 4 E.* *Additional*
testifies as follows:

QUES. 1.—What is your name—written in full and correctly spelled—your age, and post-office address?

ANS. *Peter Long, about 60 years, & P.O. address*
Altaville, Marshall Co. Ala.,

QUES. 2.—Are you a native of the United States, or have you been naturalized?

ANS. *I am a native of U.S.*

QUES. 3.—When was your house built on the land and when did you establish actual residence therein?
(Describe said house and other improvements which you have placed on the land, giving total value thereof.)

ANS. *I have resided on orig entry, proof filed*
Nov 11 1880 \$15-90 and have cleared about 20
acres in Additional Entry & are worth 1000\$.

QUES. 4.—Of whom does your family consist; and have you and your family resided continuously on the
land since first establishing residence thereon? (If unmarried, state the fact.)

ANS. *Wife & 4 children, yes on orig form*

QUES. 5.—For what period or periods have you been absent from the homestead since making settlement,
and for what purpose; and if temporarily absent, did your family reside upon and cultivate the land during
such absence?

ANS. *Have not been absent from orig form*

QUES. 6.—How much of the land have you cultivated and for how many seasons have you raised crops
thereon?

ANS. *About 20 acres of additional homestead*
& cultivated portions of same for years 1878 to 1883 inclusive

QUES. 7.—Are there any indications of coal, salines, or minerals of any kind on the land? (If so, describe
what they are, and state whether the land is more valuable for agricultural than for mineral purposes.)

ANS. *No.*

QUES. 8.—Have you ever made any other homestead entry? (If so, describe the same.)

ANS. *Yes orig form \$1590.*

QUES. 9.—Have you sold, conveyed, or mortgaged, any portion of the land; and if so, to whom and for what
purpose?

ANS. *No.*

attest John E. Kieffer *Peter Long*
I hereby certify that the foregoing testimony was read to the claimant before being subscribed, and was
sworn to before me this *26th* day of *Jan*, 1884.

J. A. Sturk, Postmaster &
Ex-officio Justice Court
Marshall Co. Ala.

Note.—If naturalized, the claimant must file a certified copy of his certificate of naturalization. In a
commuted homestead a foreign-born claimant, if not naturalized, must file a certified copy of his declara-
tion of intention. In making proof, the party must surrender his original duplicate receipt, or file affidavit
of its loss.